

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased:

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MAHOGANY CATES and QUASHELLE JONES,

SUMMONS

Plaintiff

Plaintiff designates **BRONX**
County as the place of trial.

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. WATSON DORCE,
Shield No. 7221 – 40th PRECINCT and P.O. ARMIN
VAKUFAC, Shield No. 17293 – 40th PRECINCT

The basis of venue:

Plaintiff's Residence: 4030
Laconia Avenue, Bronx, NY

Defendant.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Melville, New York
January 15, 2024

By: Scott Wolinetz

SCOTT A. WOLINETZ
SCOTT A. WOLINETZ, P.C.
Attorneys for Plaintiff

**MAHOGANY CATES
& QUASHELLE JONES**
150 Broadhollow Road, Suite 208
Melville, New York 11747
(631) 423-1133

TO:

THE CITY OF NEW YORK 100 Church Street, 4th Floor, Communications Unit, New York,
NY 10007

NEW YORK CITY POLICE DEPARTMENT 100 Church Street, 4th Floor, Communications
Unit, New York, NY 10007

P.O. WATSON DORCE, Shield No. 7221 – 40th PRECINCT 1 Centre Street, Suite 1225,
New York, NY

P.O. ARMIN VAKUFAC, Shield No. 17293 – 40th PRECINCT 1 Centre Street, Suite 1225,
New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MAHOGANY CATES and QUASHELLE JONES,

Index No.:

Plaintiff

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. WATSON DORCE,
Shield No. 7221 – 40TH PRECINCT and P.O. ARMIN
VAKUFAC, Shield No. 17293 – 40TH PRECINCT

Defendant.

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Plaintiff(s) **MAHOGANY CATES** and **QUASHELLE JONES** by their attorney(s),
SCOTT A. WOLINETZ, P.C., complaining of the Defendant(s), respectfully alleges, upon
information and belief:**AS AND FOR A FIRST CAUSE OF ACTION**

1. That at all times hereinafter mentioned, Plaintiff **MAHOGANY CATES** was, and still is,
a resident of the County of Bronx City and State of New York.
2. That at all times hereinafter mentioned, Plaintiff **QUASHELLE JONES** was, and still is,
a resident of the County of Bronx City and State of New York.
3. That at all times hereinafter mentioned, the defendant **THE CITY OF NEW YORK** was
and still is a municipal corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

4. That at all times hereinafter mentioned, the defendant **NEW YORK CITY POLICE DEPARTMENT** was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
5. That at all times hereinafter mentioned, the defendant **P.O. OFFICER WATSON DORCE, Shield No. 7221 – 40th PRECINCT** was and still is an employee of **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**.
6. That at all times hereinafter mentioned, the defendant **P.O. ARMIN VAKUFAC, Shield No. 17293 – 40th PRECINCT** was and still is an employee of **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**.
7. That on or about April 6, 2023, plaintiff(s) caused a written notice to be served upon the defendants and that said notice was served within ninety (90) days of the incident alleged herein.
8. That more than thirty (30) days have elapsed since the presentation of said notice of claim and that the claim remains unadjusted, as defendants have wholly neglected, failed and refused to make any payment of the same.
9. That plaintiff answered questions at a hearing pursuant to Rule 50-h of the Municipal Law.
10. That this action has been timely commenced.
11. That this action has commenced within one (1) year and ninety (90) days of the date of the direct occurrence herein.
12. That on February 4, 2023 at approximately 1:00 a.m. at the establishment called Made in Puerto Rico located at 26 Bruckner Boulevard, Bronx, NY the Plaintiff(s) herein

were standing in front of the club waiting for a cab when defendant(s), jointly and severally in their capacity as police officers wrongfully touched, grabbed and seized the Plaintiff(s) causing them physical pain and mental suffering. At no time did the defendant(s) have legal cause to grab, seize, or touch the plaintiff(s) nor did the plaintiff(s) consent to this illegal touching, nor was it privileged by law.

13. That, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. WATSON DORCE, Shield No. 7221 – 40TH PRECINCT and P.O. ARMIN VAKUFAC, Shield No. 17293 – 40TH PRECINCT**, their police officers, agents, servants, and/or employees, departments, agencies, and other affiliates, and those acting under their directions, behest, and control in the ownership, operation, management, control and supervision were present.

14. That Plaintiff(s) **MAHOGANY CATES and QUASHELLE JONES** were injured without any fault or negligence on the part of the Plaintiff contributing thereto.

15. That by reason of the foregoing, the Plaintiff(s) **MAHOGANY CATES and QUASHELLE JONES**. were injured, was caused to suffer and will continue to suffer great physical and mental pain as well as loss of enjoyment of life and severe emotional distress; was rendered sick, sore, lame and disabled; was caused to be maliciously prosecuted by and at the direction of Defendant(s); was unable to pursue their usual and customary activities; and was otherwise injured.

16. That at all of the aforementioned acts, committed by agents servants, and/or employees of the defendant **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. WATSON DORCE, Shield No. 7221 – 40TH PRECINCT**

and P.O. ARMIN VAKUFAC, Shield No. 17293 – 40TH PRECINCT were committed due to the negligence, recklessness, and carelessness of the aforementioned agents, servants and/or other employees of the defendant(s) **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. WATSON DORCE, Shield No. 7221 – 40TH PRECINCT and P.O. ARMIN VAKUFAC, Shield No. 17293 – 40TH PRECINCT.**

17. That **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. WATSON DORCE, Shield No. 7221 – 40TH PRECINCT and P.O. ARMIN VAKUFAC, Shield No. 17293 – 40TH PRECINCT** were additionally negligent, reckless and careless in the negligent hiring, negligent retention and negligent training of agents, servants and/or employees, including, but not limited to the police officers present at the time of the incident, the officers which were employed by defendants and acting within the scope of their duties at the time of the incident herein.

18. That on February 4, 2023, Defendant's agents, servants, licensees, contractors, subcontractors, employees and other affiliates, agencies and departments and those acting under its behest and direction, permission and control, while acting within the scope of their duties as an employee of **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. WATSON DORCE, Shield No. 7221 – 40TH PRECINCT and P.O. ARMIN VAKUFAC, Shield No. 17293 – 40TH PRECINCT** stopped and arrested Plaintiff(s) without probable cause and/or reasonable suspicion and without any valid warrant, order or legal process, thereby depriving plaintiff(s) of their right to be free from unreasonable search and seizure as required by the Fourth and

Fourteenth Amendments, therefore, defendant(s) are liable under 42 U.S.C. Section 1983 which prohibits deprivation under color of state law, or rights secured under the United States Constitution.

19. As a result of aforesaid violation, plaintiff(s) have been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know them, and has been otherwise damaged.
20. That at all times hereinafter mentioned, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. WATSON DORCE, Shield No. 7221 – 40TH PRECINCT and P.O. ARMIN VAKUFAC, Shield No. 17293 – 40TH PRECINCT** their agents, servants and/or employees, departments, agencies and those acting under their directions, behest and control, failed to properly investigate and/or evaluate the results of any investigation of those persons hired to conduct the arrest.
21. That by reason of the foregoing and the negligence of the said Defendants, the Plaintiff(s) have been informed and verily believes, their injuries are permanent in nature and they will be caused to suffer permanent embarrassment and continuous pain and inconvenience.
22. That by reason of the foregoing, the Plaintiff(s) **MAHOGANY CATES and QUASHELLE JONES** have been unable to attend to their usual occupation and avocation in the manner required.
23. That as a result of the foregoing, Plaintiff(s) **MAHOGANY CATES and QUASHELLE JONES** have been damaged in an amount which exceeds the jurisdictional limit of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

24. Plaintiff repeats and realleges each and every allegation contained in Paragraphs “1” through “23”, with the same force and effect as those set forth herein and at length.

WHEREFORE, Plaintiff(s) **MAHOGANY CATES** and **QUASHELLE JONES**, demands judgment against the Defendant(s) in an amount greater than the jurisdictional limits of all lower Courts and is entitled to punitive and exemplary damages in an amount to be proven at the time of trial, together with the costs and disbursements of this action.

Dated: January 15, 2024
Melville, New York

By: *Scott Wolinetz*

SCOTT A. WOLINETZ
SCOTT A. WOLINETZ, P.C.

Attorneys for Plaintiff

**MAHOGANY CATES
& QUASHELLE JONES**

150 Broadhollow Road, Suite 208
Melville, New York 11747
(631) 423-1133

VERIFICATION

Scott A. Wolinetz, Esq., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney for the Plaintiff(s) **MAHOGANY CATES** and **QUASHELLE JONES** in the within action. I have read the annexed **Summons and Verified Complaint** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiffs is that Plaintiffs are not presently in the County wherein the attorneys for the Plaintiff maintain their offices.

Dated: January 15, 2024
Melville, New York

By: *Scott Wolinetz*

SCOTT A. WOLINETZ
SCOTT A. WOLINETZ, P.C.

Attorneys for Plaintiff

**MAHOGANY CATES
& QUASHELLE JONES**

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DORCE, Shield No. 7221 – 40TH PRECINCT and P.O. ARMIN VAKUFAC, Shield No.
17293 – 40TH PRECINCT

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCOTT A. WOLINETZ, P.C.

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